

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[823 NE2d 824, 790 NYS2d 418]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS PRADO, Appellant.

Argued November 18, 2004; decided December 16, 2004

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered November 17, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Matthew J. D’Emic, J.), which had convicted defendant, upon a nonjury trial, of course of sexual conduct against a child in the first degree and endangering the welfare of a child.

Defendant signed two written confessions and admitted in a videotaped statement that he committed sexual acts with his then eight-year-old stepdaughter. On appeal he argued, among other things, that the trial judge, who had also presided at a hearing on his motion to suppress his confessions, exhibited bias against him, and that his counsel was ineffective. The Appellate Division concluded that defendant failed to raise any specific, relevant objections to the trial court’s alleged bias and thus that claim was unpreserved for judicial review.

People v Prado, 1 AD3d 533, affirmed.

HEADNOTES

Appeal — Preservation of Issue for Review

1. In a prosecution for course of sexual conduct against a child and endangering the welfare of a child, wherein defendant was convicted following a nonjury trial, the Appellate Division properly concluded that defendant’s judicial bias claim was unpreserved for appellate review.

Crimes — Right to Counsel — Effective Representation

2. Defendant’s ineffectiveness of counsel claim, that his attorney failed to preserve an objection as to the lack of evidence corroborating his confession as

required by CPL 60.50, was without merit. Defense counsel's general motion to dismiss the counts charged, made at the close of evidence, coupled with the trial judge's specific findings as to corroboration, indicate the question on appeal was expressly decided by that court.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, New York City, for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Diane R. Eisner*, *Leonard Joblove* and *Anthea H. Bruffee* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1, 2] Defendant appeals his conviction following a bench trial for sexual abuse of his stepdaughter. With respect to the issue of alleged judicial bias that divided the Appellate Division, we agree with the majority that defendant's claim was unpreserved for appellate review (1 AD3d 533, 534 [2003]). Additionally, defendant's ineffectiveness of counsel claim—that his attorney failed to preserve an objection as to the lack of evidence corroborating his confession as required by CPL 60.50—is without merit. At the close of the evidence, defense counsel made a general motion to dismiss the counts charged, which the trial court denied. While this objection alone would not have been sufficient to preserve the issue for our review (*see e.g. People v Gray*, 86 NY2d 10 [1995]), when coupled with the trial judge's specific findings as to corroboration, the question now on appeal was expressly decided by that court (*see* CPL 470.05).

R.S. SMITH, J. (dissenting in part). I agree with the majority that defendant's judicial bias claim was not preserved, and that his claim that his confession was insufficiently corroborated was preserved. Unlike the majority, I conclude from this that we should decide the claim that was preserved: Was the confession sufficiently corroborated?

The majority avoids deciding this issue on the ground that defendant, on appeal, makes the mistaken assumption that he did not preserve the corroboration issue, and therefore his argument on corroboration is subsumed in an argument that trial counsel was ineffective. In other words, defendant argues on appeal that: (1) his confession was not adequately corroborated; and (2) trial counsel was ineffective for failing to preserve the

point. Since we hold today that the point was preserved, the second half of defendant's argument is unnecessary.

That, in my opinion, is not a reason not to address the first half. Though defendant did not consecrate a separate point heading in his brief to arguing that his confession was insufficiently corroborated, he has made the argument, fully and ably, in his brief and orally. The question presented is, as Judge George B. Smith's dissent demonstrates, a difficult and important one. I do not suggest that I either agree or disagree with my namesake's views on the merits of the question, but I think we ought to decide it.

G.B. SMITH, J. (dissenting). Because defendant's attorney was ineffective in failing to raise or argue that corroboration of defendant's confession was lacking and because the trial court made up its mind that the defendant was guilty prior to the bench trial, defendant was denied a fair trial. Accordingly, I dissent and would grant the defendant a new trial.

Defendant was convicted of course of sexual conduct against a child in the first degree and endangering the welfare of a child. He was sentenced to a determinate prison term of seven years and one year respectively.

The evidence against the defendant consisted of two written confessions and a videotaped confession in which he admitted sexual conduct against the child, his stepdaughter, when she was eight years old. The confessions were introduced through a detective. The child, 11 years old at the time of the trial, denied that the defendant abused her. There was no physical evidence of sexual abuse. The court and the prosecutor repeatedly questioned the child witness about the abuse. The court told the prosecutor to impeach the child's testimony with her grand jury testimony and the prosecution did so, reading questions and answers from that testimony that indicated sexual abuse. The defense attorney objected to the leading questions permitted by the court, "to the way this proceeding is going on," stating, "I think the witness is being intimidated," and to the use of the child's grand jury testimony. The mother of the child testified that the child had told her of the sexual abuse in 2000, three years after it had begun. At the end of the People's case, defendant moved to dismiss the indictment on the grounds that the People had failed to make out a prima facie case but did not specify why a prima facie case had not been made out (*see People v Gray*, 86 NY2d 10, 19 [1995]).

Defendant took the stand and denied that any sexual abuse had occurred. He stated that his statements were coerced by the threatening manner of the police and by his discomfort in a cold room due to air conditioning. No motion to dismiss was made at the end of the entire case.

The problem in this case arose when, at trial, the child denied any sexual abuse had occurred. Thus, some evidence other than her testimony was necessary to comply with CPL 60.50 which states:

“A person may not be convicted of any offense solely upon evidence of a confession or admission made by him without additional proof that the offense charged has been committed.”

The trial court, recognizing that compliance with CPL 60.50 was necessary, indicated that it did not believe the testimony of the child that nothing happened, that the child had been with the defendant when her mother attended Parent/Teacher Association meetings and that there had been a “timely outcry” to the mother even though the child did not tell her mother about the abuse for three years. The court found the defendant guilty.

The Appellate Division affirmed the conviction with two of the five Justices dissenting. The majority concluded that the defendant had not preserved for appellate review the issue of the prosecution’s failure to corroborate the confessions. It further concluded that the presence of the defendant in the home while the mother attended PTA meetings and her daughter’s “timely outcry” corroborated the confessions. The dissent concluded that the defendant had been denied a fair trial by the trial court’s “inappropriate intervention,” stating, “The record demonstrates that the trial judge had made up his mind as to the defendant’s guilt prior to the nonjury trial. Upon being surprised by the complainant’s trial testimony which did not incriminate the defendant, the trial judge took on the role of the prosecutor.” (1 AD3d at 537.) One of the dissenting Justices granted defendant leave to appeal.

On this appeal defendant argues that defendant was denied due process of law when the trial court assumed a prosecutorial role by questioning the child witness to the point of badgering her and asking the prosecutor to impeach the witness with her grand jury testimony. Defendant also argues that defendant was denied his right to the effective assistance of counsel when the attorney failed to argue that the evidence of corroboration was insufficient to comply with CPL 60.50.

The defense attorney did not raise the corroboration issue and did not argue against the court's conclusion with respect to corroboration. In failing to do so and to cite CPL 60.50, counsel was ineffective.

CPL 60.50 requires that a confession be corroborated by other evidence indicating that the defendant committed the crime. The trial court found that other evidence in the defendant's presence in the home while the mother attended PTA meetings and in the "timely outcry" of the child to her mother. Presence alone cannot supply the evidence required by CPL 60.50. Moreover, it cannot be seriously contended that there was a prompt outcry in this case when there was no outcry whatsoever for three years (*see People v McDaniel*, 81 NY2d 10 [1993]; *People v Rice*, 75 NY2d 929 [1990]). "One limitation on admissibility of such evidence is that, as its name suggests, the complaint must have been made promptly after the crime" (*People v McDaniel*, 81 NY2d at 17). Moreover, prompt outcry is used to support the testimony of an alleged victim, not to substitute for the witness's denial that a crime took place (*id.*). While the testimony of the child witness before the grand jury might have supplied the missing evidence, that testimony was used only for impeachment purposes and the People did not seek its admission as direct evidence.

In addition to counsel's failure to raise the issue of corroboration, I agree with the dissenters at the Appellate Division that the court at the beginning of the trial indicated that it had made up its mind that the defendant was guilty. The court stated:

"Let me preface this by saying that obviously if Mr. Prado was innocent, had no involvement in this, then it wouldn't be just for him to plead guilty but let's face it its no secret here. We all watched the videotape. I don't see that happening. So I don't know Mr. Kimmel, do you want take [*sic*] a minute to speak with him or do you—."

Moreover, the court assumed the role of a prosecutor. Thus, it was the court that directed the prosecution to impeach the credibility of the 11-year-old witness by using her grand jury testimony. The prosecution did so and the witness's statements of sexual abuse, made before the grand jury, became part of the record for impeachment purposes. It was not the appropriate role of the trial court to substitute for or to aid the prosecution. In addition, the prosecution did not argue that the testimony

before the grand jury could provide the necessary corroboration pursuant to CPL 60.50.

Accordingly, I would reverse and grant the defendant's request for a new trial.

Chief Judge KAYE and Judges CIPARICK, ROSENBLATT, GRAFFEO and READ concur; Judge R.S. SMITH dissents in part in an opinion; Judge G.B. SMITH dissents and votes to reverse and order a new trial in a separate opinion.

Order affirmed in a memorandum.

CREDIT SUISSE FIRST BOSTON CORPORATION, Appellant, v WILLIAM PITOFKY et al., Respondents.

Submitted December 6, 2004; decided December 16, 2004

Reported below, 2 AD3d 6.

Motion to enlarge the record on appeal denied.

In the Matter of the Estate of ESHAGH ESHAGHIAN, Also Known as E. IKE ESHAGHIAN, Deceased. MAHROKH ESHAGHIAN et al., Respondents. DAVID ESHAGHIAN, Nonparty Appellant.

Submitted November 1, 2004; decided December 16, 2004

Reported below, 7 AD3d 707.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed Surrogate Court's order denying renewal, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

EDWIN FREDERICK, Respondent, v JOSEF FRIED, Appellant, et al., Defendant.

EDWIN FREDERICK et al., Respondents, v JOSEF FRIED, Appellant.

Submitted December 6, 2004; decided December 16, 2004

Reported below, 308 AD2d 507.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

JMD HOLDING CORP., Respondent, v CONGRESS FINANCIAL CORPORATION, Appellant, et al., Defendant.

Submitted December 13, 2004; decided December 16, 2004

Reported below, 5 AD3d 334.

Motion by Commercial Finance Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

JEFFREY LAING, Appellant, v SAMUEL CANTOR, Doing Business as LAW OFFICES OF SAMUEL CANTOR, et al., Respondents.

Submitted October 25, 2004; decided December 16, 2004

Reported below, 1 AD3d 406.

Motion, insofar as it seeks leave to appeal against Samuel Cantor, doing business as Law Offices of Samuel Cantor, dismissed upon the ground that as to that party the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

LEONARD J. LEVENSON et al., Respondents, v JONATHAN LIPPMAN, as Chief Administrator of the Courts, et al., Appellants.

Submitted November 29, 2004; decided December 16, 2004

Reported below, 5 AD3d 86.

Motion by Association of Justices of the Supreme Court of the State of New York et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed.

Chief Judge KAYE taking no part.

In the Matter of METRO ENVIRO TRANSFER, LLC, Appellant, v VILLAGE OF CROTON-ON-HUDSON et al., Respondents.

Submitted July 29, 2004; decided December 16, 2004

Reported below, 7 AD3d 625.

Motion for leave to appeal granted. Motion for a stay granted.

NEW YORK TELEPHONE COMPANY, Respondent, v SUPERVISOR OF
TOWN OF OYSTER BAY et al., Appellants, et al., Defendants.
(And a Third-Party Action.) (Action No. 1.)

NEW YORK TELEPHONE COMPANY, Respondent, v SUPERVISOR OF
TOWN OF OYSTER BAY et al., Appellants, et al., Defendants.
(And a Third-Party Action.) (Action No. 2.)

Submitted December 6, 2004; decided December 16, 2004

Reported below, 6 AD3d 511.

Motion by Association of Towns of the State of New York for
leave to file a brief amicus curiae on the appeal herein granted
and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS
CABAN, Appellant.

Submitted December 6, 2004; decided December 16, 2004

Reported below, 4 AD3d 274.

Motion, treated as one for assignment of counsel, granted
only to the extent that Robert J. Boyle, Esq., 350 Broadway,
Suite 308, New York, NY 10013 is assigned without fee to repre-
sent appellant on the appeal herein. Counsel may, however, ap-
ply for reimbursement of necessary disbursements incurred in
connection with the assignment, subject to the limitations
contained in section 500.10 (c) of the Rules of the Court of Ap-
peals (22 NYCRR 500.10 [c]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MI-
CHAEL JOHNSON, Appellant.

Submitted December 6, 2004; decided December 16, 2004

Reported below, 4 Misc 3d 140(A).

Motion for assignment of counsel granted and Laura Johnson,
Esq., Legal Aid Society, 199 Water Street, New York, NY 10038
assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS
KELLY, Appellant.

Submitted November 29, 2004; decided December 16, 2004

Reported below, 11 AD3d 133.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAUL LOPEZ, Appellant.

Submitted November 29, 2004; decided December 16, 2004

Reported below, 10 AD3d 264.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 45 West 45th Street, 7th Floor, New York, NY 10036 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KATHERINE M. SEEGER, Appellant.

Submitted November 29, 2004; decided December 16, 2004

Reported below, 4 AD3d 620.

Motion for assignment of counsel granted and Eugene P. Grimmick, Esq., 52 Second Street, Troy, New York 12180 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v NORRIS WILLIAMS, Respondent.

Submitted November 29, 2004; decided December 16, 2004

Reported below, 10 AD3d 213.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

In the Matter of MICHAEL T. SARRO, Appellant, v MARY H. SMITH, Respondent.

Submitted November 1, 2004; decided December 16, 2004

Reported below, 8 AD3d 395.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

STATE FARM MUTUAL AUTOMOBILE INSURANCE Co., Appellant, v
ROBERT MALLELA, et al., Respondents.

Submitted December 13, 2004; decided December 16, 2004

Motion by Gregory V. Serio, Superintendent of Insurance of the State of New York, for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

U.S. UNDERWRITERS INSURANCE COMPANY, Respondent-
Appellant, v CITY CLUB HOTEL, LLC, et al., Appellants-
Respondents, et al., Respondents.

Submitted December 13, 2004; decided December 16, 2004

Motion by United Policyholders for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

[823 NE2d 834, 790 NYS2d 428]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICHOLAS MARQUEZ, Appellant.

Decided December 21, 2004

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 30, 2003. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Edward McLaughlin, J.), which had convicted defendant, upon a jury trial, of criminal sale of a controlled substance in or near school grounds, criminal sale of a controlled substance in the third degree and criminal possession of a controlled substance in the third degree.

People v Marquez, 2 AD3d 343, reversed.

HEADNOTE

Crimes — Appeal — Reconstruction Hearing — Lost Minutes

Where a significant portion of minutes of proceedings has been lost, a criminal defendant appealing a conviction after trial is normally entitled to a

reconstruction hearing if he has acted with reasonable diligence to mitigate the harm resulting from the mishap. However, where, as here, the record does not permit an appellate court to rule on that question, the case should be remitted. On remittal, the Appellate Division should decide, or should instruct Supreme Court to decide, after giving the parties an opportunity to make appropriate submissions, whether defendant acted with reasonable diligence. If he did, a reconstruction hearing should be ordered, and if he did not his conviction should be affirmed.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*William A. Loeb* and *Robert S. Dean* of counsel), for appellant.

Robert Morgenthau, District Attorney, New York City (*Heather Pearson* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to the Appellate Division for further consideration in light of *People v Parris* (4 NY3d 41 [decided today]).

We hold in *Parris* that, where a significant portion of minutes of proceedings has been lost, a defendant appealing a conviction after trial is normally entitled to a reconstruction hearing if he has acted with reasonable diligence to mitigate the harm resulting from the mishap. In *Parris*, the record permitted us to conclude as a matter of law that the defendant had not acted with reasonable diligence. The record in this case, however, does not permit us to rule on that question. On remittal, the Appellate Division should decide (or, if it thinks better, should instruct Supreme Court to decide), after giving the parties an opportunity to make appropriate submissions, whether defendant acted with reasonable diligence, as *Parris* requires. If he did, a reconstruction hearing should be ordered, and if he did not his conviction should be affirmed.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order reversed and case remitted to the Appellate Division, First Department,

for further proceedings in accordance with the memorandum herein.

In the Matter of SAMUEL J. ABATE, JR., et al., Respondents, v CITY OF YONKERS et al., Respondents, and TOWN OF GREENBURGH, Appellant. (Proceeding No. 1.)

In the Matter of TOWN OF GREENBURGH, Appellant, v CITY COUNCIL OF THE CITY OF YONKERS et al., Respondents, and VILLAGE OF ARDSLEY, Intervenor-Respondent. (Proceeding No. 2.)

Submitted November 1, 2004; decided December 21, 2004

Reported below, 10 AD3d 605.

Motion, insofar as it seeks leave to appeal in Proceeding No. 1, dismissed upon the ground that it does not lie from the Appellate Division order dismissing the appeal to that Court from the determination entered on default (*see* CPLR 5511); motion, insofar as it seeks leave to appeal in Proceeding No. 2, denied.

CHERYL ANDREA et al., Appellants, v ARNONE, HEDIN, CASKER, KENNEDY AND DRAKE, ARCHITECTS AND LANDSCAPE ARCHITECTS, P.C. (HABITERRA ASSOCIATES), et al., Respondents, et al., Defendants. (Action No. 1.)

MARK FOSTER et al., Appellants, v JAMESTOWN PUBLIC SCHOOLS et al., Defendants, and ARNONE, HEDIN, CASKER, KENNEDY AND DRAKE, ARCHITECTS AND LANDSCAPE ARCHITECTS, P.C. (HABITERRA ASSOCIATES), et al., Respondents. (Action No. 2.)

Submitted November 8, 2004; decided December 21, 2004

Reported below, 8 AD3d 1080.

Motion for leave to appeal, insofar as made by Timothy Moran, denied; motion for leave to appeal otherwise granted.

STEVEN BOULUKOS et al., Plaintiffs, v 213 P.A.S., L.L.P., Defendant. (And a Third-Party Action.)

213 P.A.S., L.L.P., Second Third-Party Plaintiff-Respondent, v CITY SCAFFOLDING CORP., Second Third-Party Defendant-Appellant.

Submitted November 1, 2004; decided December 21, 2004

Reported below, 7 AD3d 346.

Motion, insofar as it seeks leave to appeal from the Appellate Division order, dismissed upon the ground that the order does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the subsequently entered Supreme Court judgment, dismissed upon the ground that simultaneous appeals do not lie to the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

JANE HOM, Respondent, v GEORGE HOM, Appellant.

Submitted December 13, 2004; decided December 21, 2004

Reported below, 2 AD3d 493.

Appeal, insofar as taken from the October 15, 2002 Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie, appellant having previously taken an appeal to the Court of Appeals (99 NY2d 569) from the same Appellate Division order from which his appeal is currently taken; appeal, insofar as taken from that portion of the December 8, 2003 Appellate Division order that affirmed the imposition of sanctions, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal, insofar as taken from the remainder of the December 8, 2003 Appellate Division order, otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the remaining portion of the order does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BENJAMIN HUNTER, Appellant.

Submitted November 29, 2004; decided December 21, 2004

Reported below, 10 AD3d 693.

Motion for assignment of counsel granted and J. Scott Porter, Esq., 78 Cayuga Street, Seneca Falls, New York 13148-1229 assigned as counsel to the appellant on the appeal herein.

In the Matter of MURRAY H. SHULMAN, Appellant, v THOMAS J. CAHILL, Respondent.

Submitted November 15, 2004; decided December 21, 2004

Reported below, 8 AD3d 26.

Motion for leave to appeal denied. Motion to enlarge the record on appeal denied. Motion for poor person relief dismissed as academic.

SHAWN STOCKLAS, Appellant, v AUTO SOLUTIONS OF GLENVILLE, INC., et al., Respondents. (And Another Related Action.)

Submitted November 15, 2004; decided December 21, 2004

Reported below, 9 AD3d 622.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that denied appellant's motion to renew or reargue, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of JACK VIGLIOTTI, Appellant, v JOHN BURGE, as Superintendent of Auburn Correctional Facility, et al., Respondents.

Submitted November 8, 2004; decided December 21, 2004

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of the Claim of CORINE D. WALLACE, Appellant, v
YWCA OF CHEMUNG COUNTY et al., Respondents. WORKERS'
COMPENSATION BOARD, Respondent. (And Another Related
Claim.)

Submitted November 15, 2004; decided December 21, 2004

Reported below, 8 AD3d 912.

Motion, insofar as it seeks leave to appeal as against the YWCA of Chemung County and CNA Insurance Company, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the denial of reconsideration, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

**MOTIONS FOR LEAVE TO APPEAL/APPEALS
DISMISSED ON FINALITY GROUNDS**

Decided December 16, 2004

Aminov, Matter of, v New York Black Car Operators Injury Compensation Fund, Inc.	3d Dept: 2 AD3d 1007
Aviles v San Rafael Cooperativa de Ahorro y Credito	1st Dept: 7 AD3d 431
Brown, Matter of, v Verizon N.Y., Inc.	3d Dept: 8 AD3d 838
Panarello v Segalla	2d Dept: 6 AD3d 515
Salis v Ghana Airways	2d Dept: 9 AD3d 421
Timmins v Tishman Constr. Corp.	1st Dept: 9 AD3d 62
Woolfalk v New York City Hous. Auth.	1st Dept: 10 AD3d 524

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Blinco v Preferred Mut. Ins. Co.	4th Dept: 11 AD3d 924
Cafaro v Emergency Servs. Holding, Inc.	2d Dept: 11 AD3d 496
Dolberry v State of New York	App Div, 3d Dept, July 1, 2004
Hotel des Artistes, Inc. v General Acc. Ins. Co. of Am.	1st Dept: 9 AD3d 181
McTighe, Matter of, v Pearl	4th Dept: 8 AD3d 951
Pearl, Matter of, v McTighe	4th Dept: 8 AD3d 951
Peter R., Matter of (Stacey R.)	2d Dept: 8 AD3d 567